

## 25CHCV01429 25CHCV01429

County: los-angeles

Division: Civil Law and Motion

Department: F47

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Dept. F47

Date: 9/28/26

Case #25CHCV01429

DEMURRER

& MOTION TO STRIKE TO THE FIRST AMENDED COMPLAINT

Demurrer & Motion filed on 4/15/26.

MOVING PARTY: Defendant Los

Angeles County Metropolitan Transportation Authority

RESPONDING PARTY: Plaintiff Bryan

Veilman

NOTICE: ok

Demurrer is to the 2nd

cause of action:

1.

Personal

Injury (Negligence)

2.

Gross Negligence (Government Code 820(a),

815.2)

#### RELIEF REQUESTED IN MOTION TO

STRIKE: An order striking Plaintiff's claim for punitive and exemplary damages and specifically: ¶6 of the Prayer; ¶21, ¶38, ¶39 and ¶4.

RULING: The demurrer is sustained without leave to amend. The motion to strike is moot, in part; denied, in part; and granted without leave to amend, in part.

#### SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises from an auto accident that occurred on 12/4/23 between Plaintiff Bryan Veilman's (Plaintiff) vehicle and a bus owned by Defendant Los Angeles County Metropolitan Transportation Authority (Defendant).

On 4/25/25, Plaintiff filed this action against Defendant alleging causes of action for: (1) Personal Injury (Negligence), (2) Negligence Per Se and (3) Negligent Hiring, Supervision and Retention. In response to Defendant's demurrer and motion to strike the original complaint, on 2/27/26, Plaintiff filed and served the operative First Amended Complaint which alleges causes of action for: (1) Personal Injury (Negligence) and (2) Gross Negligence (Government Code 820(a) and 815.2).

After meet and confer efforts failed to resolve the issues Defendant has with Plaintiff's First Amended Complaint, on 4/15/26, Defendant filed and served the instant demurrer to the 2nd cause of action and motion to strike portions of the First Amended Complaint.

Plaintiff has not opposed or otherwise responded to the demurrer and/or motion to strike.

#### ANALYSIS

A public entity is not liable for an injury except as provided by statute.

Government Code 815(a). Government Code 815.2(a) provides that "a public entity is liable for injury proximately caused by an act or omission of

an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative." However, common law claims such as negligence may not be maintained against public entities. See Hilts (1968) 265 CA2d 161, 169-171; Miklosy (2008) 44 C4th 876, 899.

A plaintiff must plead every fact

essential to the existence of statutory liability against a public entity. Lopez (1985) 40 C3d 780, 795. A demurrer is properly sustained where the

plaintiff fails to allege a statutory basis for liability against a public entity. Tilton (2006) 142 CA4th

848, 863-864; See also Searcy (1986) 177 CA3d 792, 798. Additionally, a plaintiff must plead with

particularity, showing that the complaint against a public entity falls outside any statutory immunity. People ex rel

Dept. of Transportation v. Sup. Court (1992) 5 CA4th 1480.

"California does not recognize a

separate cause of action for 'gross negligence' independent of a statutory basis." Eriksson (2011) 191 CA4th

829, 856. Plaintiff fails to allege a

proper statutory basis for his 2nd cause of action for gross

negligence. Plaintiff has properly

stated a claim against Defendant for its employee's alleged negligence based on Government Code 815.2(a) in the 1st cause of action.

The only portion of the motion to

strike which is not rendered moot by the elimination of the 2nd

cause of action is the request to strike ¶21 which is within the 1st

cause of action and ¶6 of the Prayer regarding punitive damages.

In ¶21, Plaintiff alleges:

"Plaintiff is informed and believes and thereupon alleges

that, at all times mentioned herein, Defendant MTA and his respective

supervisors and/or managers, and each of them, were the agents, servants, and

employees of the defendants, and were acting within the course and scope of

their employment, thereby rendering the defendants, and each of them, liable

for the injuries proximately caused by the acts or omissions of Aaron Botel and

his respective supervisors and/ or managers, pursuant to California Government

Code section 815.2."

Defendant has failed to establish that ¶21 contains improper allegations regarding negligent hiring, training and retention allegations.

Plaintiff has also failed to allege sufficient facts to support a prayer for punitive damages.

## CONCLUSION

The demurrer to the 2nd cause of action for gross negligence is sustained without leave to amend.

The request to strike ¶¶38, 39 and 40 is moot due to the ruling on the demurrer.

The request to strike ¶21 is denied.

The request to strike ¶6 of the Prayer regarding punitive damages is granted without leave to amend.

Plaintiff has now had two opportunities to plead his claims against Defendant and has failed to adequately plead a cause of action for gross negligence and/or a claim for punitive damages. Additionally, Plaintiff has not opposed the demurrer or motion to strike or given any indication that he can cure the defects in the First Amended Complaint.